

the person who pays the money, and the person in whose name the conveyance *is taken. We must, [*163] therefore, distribute the subject under two heads:

First, Purchases in the name of a stranger; and Secondly, Purchases in the name of a child, or wife, or near relatives.

First. Where the purchase is in the name of a stranger.

1. **General rule.** — “The clear result,” said Lord Chief Baron Eyre, “of all the cases, without a single exception, is that the trust of a legal estate, whether freehold, copyhold, or leasehold; whether taken in the names of the purchaser and others jointly, or in the name of others without that of the purchaser; whether in one name or several, whether jointly (*a*), or *successive* (*b*), results to the man who advances the purchase-money (*c*); and it goes on a strict analogy to the rule of the common law, that where a feoffment is made without consideration, the use results to the feoffor” (*d*).

2. **Who in particular cases is the real purchaser.** — But no trust will result unless the person advance the money in the character of a *purchaser*; for if A. discharge the purchase-money by way of *loan* to B., in whose name the conveyance is taken, no trust will result in favour of A., who is merely a creditor of B. (*e*). And, on the other hand, should B. advance the purchase-money, but only on account of A.,

(*a*) See *Ex parte Houghton*, 17 Ves. 251; *Rider v. Kidder*, 10 Ves. 367.

(*b*) *Withers v. Withers*, Amb. 151; *Howe v. Howe*, 1 Vern. 415; *Goodright v. Hodges*, 1 Watk. Cop. 227; *S. C. Lofft*, 230; *Smith v. Baker*, 1 Atk. 385; *Clark v. Danvers*, 1 Ch. Ca. 310; *Pranker v. Pranker*, 1 S. & S. 1.

(*c*) *Redington v. Redington*, 3 Ridg. 177, *per* Lord Loughborough; *Hungate v. Hungate*, Tothill, 120; *Ex parte Vernon*, 2 P. W. 549; *Ambrose v. Ambrose*, 1 P. W. 321; *Willis v. Willis*, 2 Atk. 71; *Woodman v. Morrel*, 2 Freem. 33, *per Cur.*; *ib.* 123; *Finch v. Finch*, 15 Ves. 50, *per* Lord Eldon; *Grey v. Grey*, 2 Sw. 597; *S. C. Finch*, 340, *per* Lord Nottingham; *Wray v.*

Steele, 2 V. & B. 300, *per* Sir T. Plumer; *Smith v. Camelford*, 2 Ves. jun. 712, *per* Lord Loughborough; *Anon.* 2 Vent. 361; *Pelly v. Maddin*, 21 Vin. Ab. 498; *Lever v. Andrews*, 7 B. P. C. 288; *Lade v. Lade*, 1 Wils. 21; *Groves v. Groves*, 3 Y. & J. 170, *per* Ch. Bar. Alexander; *Murless v. Franklin*, 1 Sw. 17, 18, *per* Lord Eldon; *Crop v. Norton*, 9 Mod. 235; *S. C. Barn.* 184; *S. C.* 2 Atk. 75, *per* Lord Hardwicke; *Trench v. Harrison*, 17 Sim. 111; *James v. Holmes*, 4 De G. F. & J. 470.

(*d*) *Dyer v. Dyer*, 2 Cox, 93; *S. C.* 1 Watk. Cop. 218.

(*e*) See *Bartlett v. Pickersgill*, 1 Eden, 516; *Crop v. Norton*, 9 Mod. 235.